

## MAKEUP EXAMINATIONS – MAY 2022

|             |                                                     |            |                |
|-------------|-----------------------------------------------------|------------|----------------|
| Program     | : <b>B.E. : Information Science and Engineering</b> | Semester   | : <b>V</b>     |
| Course Name | : <b>Intellectual Property Rights</b>               | Max. Marks | : <b>100</b>   |
| Course Code | : <b>IS54</b>                                       | Duration   | : <b>3 Hrs</b> |

### Instructions to the Candidates:

- Answer one full question from each unit.

#### UNIT- I

- Briefly explain with an example any five different forms of IPR. CO1 (10)
  - Explain the main features of the TRIPS agreement. CO1 (10)
- How can IPR laws be made more proactive than reactive? Explain with examples. CO1 (10)
  - Explore the relationship between technology and law in the context of IPR. CO1 (10)

#### UNIT – II

- Discuss the concept of patent in detail. CO2 (06)
  - Describe the policy consideration elements of patentability. CO2 (06)
  - Explain the non-patentable subject matter procedure for filing of patent application. CO2 (08)
- Elucidate the steps in the preparation of patent documents. CO2 (06)
  - Discuss the procedure for revocation of patents. CO2 (06)
  - With a neat diagram, explain the steps involved in the patent examination process. CO2 (08)

#### UNIT – III

- With a neat sketch, explain the procedure for registration of trademark. CO3 (10)
  - Justify whether the following can obtain trademark in India: CO2 (10)
    - Mysore Special Silk Textiles
    - Bright dishwash powder
    - Curls and Straight Hair Saloon
    - www.msrit.edu
    - Top Class Tyre.
- Mention the functions of trademark. Write short notes on the variants of trademark with suitable examples. CO2 (10)
  - Justify whether the following can obtain trademark in India: CO2 (10)
    - Shashi Taroor Dictionaries
    - Assam Tea
    - Saint Alphonsa Roseries and Candles
    - Fragrant Washing Liquid
    - Gandhi Khadi Wear.

## UNIT – IV

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|----|----|--------------------------------------------------------------------------------------------------------------------------------|-----|------|
| 7. | a) | Explain in detail, who can obtain copyright for different kinds of artistic and commercial works?                              | CO2 | (06) |
|    | b) | Which type of artifacts created during software development can be protected by copyright laws in India? Justify with example. | CO2 | (06) |
|    | c) | Justify whether the following can obtain copyright in India:                                                                   | CO3 | (08) |
|    |    | i. Title of a Film.                                                                                                            |     |      |
|    |    | ii. A new song for a movie.                                                                                                    |     |      |
|    |    | iii. Painting in a temple wall.                                                                                                |     |      |
|    |    | iv. Architecture plan for an office.                                                                                           |     |      |
| 8. | a) | Briefly explain the scope of copyright law in the case of cinematograph film.                                                  | CO2 | (05) |
|    | b) | Explain the following concepts with respect to copyright:                                                                      | CO2 | (08) |
|    |    | i. Idea Expression Dichotomy                                                                                                   |     |      |
|    |    | ii. Originality.                                                                                                               |     |      |
|    | c) | Answer Yes/No whether the following can obtain copyright in India.                                                             | CO3 | (07) |
|    |    | i. Dialogues of a movie                                                                                                        |     |      |
|    |    | ii. Number Plate of a vehicle                                                                                                  |     |      |
|    |    | iii. Script of a TV show                                                                                                       |     |      |
|    |    | iv. Court Judgements                                                                                                           |     |      |
|    |    | v. Member and Function list of a Class in OO Design                                                                            |     |      |
|    |    | vi. Class Notes given by teacher.                                                                                              |     |      |
|    |    | vii. Newspaper.                                                                                                                |     |      |

## UNIT – V

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|-----|----|----------------------------------------------------------------------------------------------------|-----|------|
| 9.  | a) | Explain in detail any 3 international norms available for protecting software?                     | CO1 | (06) |
|     | b) | Write a note on protecting Intellectual Property in e-commerce like AMAZON, FLIPKART etc.?         | CO1 | (08) |
|     | c) | What are the alternatives for proprietary licenses available in India?                             | CO1 | (06) |
| 10. | a) | How is copyright compromised in cyberspace? What are the remedies available for this?              | CO1 | (08) |
|     | b) | Explain with any two examples, how proprietary software uses software licensing to restrict users? | CO1 | (06) |
|     | c) | Mention the salient points of IT ACT 2000.                                                         | CO1 | (06) |

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